

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

2. FRANK B. LAROSA V. MARIANNA LAROSA

PFL20180720

On February 25, 2026, Petitioner filed a Request for Order (RFO) requesting termination of spousal support and division of the proceeds of the sale of the community residence. All required documents were served electronically on February 26th, however this is a post-judgment request and therefore, service was required to comply with Family Code § 215.

Petitioner filed and served Points and Authorities Re: Waiver of Reimbursement Rights on March 12, 2026.

On May 8th, Respondent filed her Responsive Declaration to Request for Order, thereby waiving any defect in service. She filed her Income and Expense Declaration, her Declaration in Support of Respondent's Request for Attorney's Fees, and her Memorandum of Points and Authorities concurrently therewith. All documents were served on May 8th.

Petitioner filed and served his Reply Declaration of Attorney on May 15th. Respondent thereafter filed an Objection to Petitioner's Reply Declaration and Request to Strike Pleadings. She objects to the reply as untimely and she objects to the RFO on the basis that Petitioner failed to comply with California Rule of Court 5.92 by failing to file his Income and Expense Declaration with the RFO. Respondent asks the court to strike both pleadings.

Respondent's objection is sustained in part. The objection to the reply declaration is sustained and the motion to strike is granted. The objection to the RFO is sustained with regard to the request to modify spousal support only. Petitioner failed to file his Income and Expense Declaration at the time of filing his RFO therefore the court drops the support request from calendar. The remainder of the RFO may be reached on the merits.

Petitioner filed and served his Income and Expense Declaration on May 19th.

Petitioner asks the court to divide the sale proceeds of the community property residence equally after reimbursing him for his separate property contribution in the amount of \$274,529.52.

Respondent requests support arrears in the amount of \$56,100 plus \$8,886 in interest for a total amount due of \$64,986. She agrees to a payment of arrears from Petitioner's portion of the net proceeds of the sale of the residence but she opposes Petitioner's request for reimbursement of his alleged separate property contribution. Additionally, Respondent asks the court to appoint Stephanie Hailey as the listing agent for

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the family residence and order that the property be listed at the fair market value as determined by Ms. Hailey. She further asks that Petitioner be ordered to pay one-half of the repair costs needed to prepare the home for sale, this includes the retention of landscaping services and monthly landscape maintenance. She asks that she be allowed to continue residing in the residence until it is sold. Finally, Respondent requests \$11,727.56 in attorney's fees pursuant to Section XV.C of the Marital Settlement Agreement.

The request to place the home up for sale with Stephanie Hailey is granted. The marital residence shall be listed at the fair market value as determined by Ms. Hailey. Respondent shall continue to reside in the home until the close of escrow. The parties are ordered to comply with the terms of the Marital Settlement Agreement regarding payment of Respondent's moving expenses.

Regarding payment for the repairs and upkeep of the house, payment of Respondent's attorney's fees, Petitioner's request for reimbursement of separate property contributions and Respondent's request for spousal support arrears, the parties are ordered to appear for the hearing.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #2: RESPONDENT'S OBJECTION IS SUSTAINED IN PART. THE OBJECTION TO THE REPLY DECLARATION IS SUSTAINED AND THE MOTION TO STRIKE IS GRANTED. THE OBJECTION TO THE RFO IS SUSTAINED WITH REGARD TO THE REQUEST TO MODIFY SPOUSAL SUPPORT. PETITIONER FAILED TO FILE HIS INCOME AND EXPENSE DECLARATION AT THE TIME OF FILING HIS RFO THEREFORE THE COURT DROPS THE SUPPORT REQUEST FROM CALENDAR. THE REMAINDER OF THE RFO MAY BE REACHED ON THE MERITS.

THE REQUEST TO PLACE THE HOME UP FOR SALE WITH STEPHANIE HAILEY IS GRANTED. THE MARITAL RESIDENCE SHALL BE LISTED AT THE FAIR MARKET VALUE AS DETERMINED BY MS. HAILEY. RESPONDENT SHALL CONTINUE TO RESIDE IN THE HOME UNTIL THE CLOSE OF ESCROW. THE PARTIES ARE ORDERED TO COMPLY WITH THE TERMS OF THE MARITAL SETTLEMENT AGREEMENT REGARDING PAYMENT OF RESPONDENT'S MOVING EXPENSES.

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REGARDING PAYMENT FOR THE REPAIRS AND UPKEEP OF THE HOUSE, PAYMENT OF RESPONDENT'S ATTORNEY'S FEES, PETITIONER'S REQUEST FOR REIMBURSEMENT OF SEPARATE PROPERTY CONTRIBUTIONS AND RESPONDENT'S REQUEST FOR SPOUSAL SUPPORT ARREARS, THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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3. TAMARA MOORE V. STEVEN BUTRICK, JR.

24FL0458

On November 10, 2025, Respondent filed a Request for Order (RFO) seeking custody and visitation orders, as well as attorney's fees and child support. He filed his Income and Expense Declaration concurrently therewith. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on December 12, 2025.

Neither party appeared for the scheduled CCRC appointment.

The parties attended a hearing on the RFO on February 19, 2026 and noted faulty service of the moving papers. They stipulated to be re-referred to CCRC and continue the matter to the present date. The court adopted the stipulation and reserved jurisdiction over support back to the date of filing the RFO.

All required documents were properly served on February 13, 2026, and the parties attended the re-set CCRC appointment on March 27, 2026. They were able to reach agreements on the issues of custody and visitation. A report with those agreements was prepared and mailed to the parties on March 27, 2026.

Respondent is requesting joint legal and physical custody of the minor child. He further requests a modification of child support or, alternatively, the issue of child support to be set for an evidentiary hearing. He requests an order for Respondent to serve updated financial disclosures with an order that failure to comply will result in adoption of Respondent's estimated income of Petitioner. He asks that Respondent be ordered to pay Petitioner's attorney's fees and sanctions against Respondent though since Respondent is the moving party, the court presumes that these requests are made with regard to Petitioner.

Petitioner has not filed a Responsive Declaration to Request for Order or his Income and Expense Declaration. And Respondent has not filed an updated Income and Expense Declaration since the original filing of the RFO.

"For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); *See also* Cal. Fam. Code §2100. "'Current' means the form has been completed within the past three months providing no facts have changed." Cal. Rule Ct. 5.260(3).

The request to modify child support is denied due to Respondent's failure to file an updated Income and Expense Declaration.